

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

★ APR 25 2002 ★

MICHAEL P. BUCKLEY

LONG ISLAND OFFICE

Plaintiff,

COMPLAINT

-against-

(S.T.)

CW 02 2463

CV 02 2463

CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER DANIEL RICE, Shield #90713, Individually and as an Officer attached to the New York City Police Department, NEW YORK CITY POLICE OFFICER, NIKOS MITSINIKOS, Individually, and as an Officer attached to the New York City Police Department, NEW YORK CITY POLICE OFFICER, JAMES NESSENTHALER, Individually and as an Officer attached to the New York City Police Department, NEW YORK CITY POLICE OFFICER, JOSEPH TENNARIELLO, Individually, and as an Officer attached to the New York City Police Department, and other Officers whose names are currently unknown, Individually and as Officers attached to the New York City Police Department.

BLOCK, J.
GO, M.

Defendants.

Plaintiff, MICHAEL P. BUCKLEY, as and for his Complaint, by his attorneys, LAW OFFICES OF STEPHEN CIVARDI, ESQ., respectfully alleges as follows:

PARTIES, JURISDICTION AND VENUE

1. Plaintiff, MICHAEL P. BUCKLEY is an adult citizen who resides at 60 Remsen Lane, Floral Park, New York 11001, County of Nassau, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.



3. This Court has jurisdiction of this action pursuant to 28 U.S.C. § 1331, 1332, 1343, and 42 U.S.C. § 1983.

4. Venue is properly laid, pursuant to 28 U.S.C. §1391, et seq. in the Eastern District of New York where all parties reside and in which the events and violations complained of occurred.

5. Plaintiff demands trial by jury of all the issues in this action.

6. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, maintained, operated, managed, and controlled the New York City Police Department, which at all times relevant to this Complaint, employed the named defendants.

7. That defendants, NEW YORK CITY POLICE OFFICER DANIEL RICE, hereinafter referred to as "RICE", NEW YORK CITY POLICE OFFICER NIKOS MITSINIKOS, hereinafter referred to as "MITSINIKOS", NEW YORK CITY POLICE OFFICER, JAMES NESSENTHALER, hereinafter referred to as "NESSENTHALER" and NEW YORK CITY POLICE OFFICER, JOSEPH TENNARIELLO were at all times relevant to this Complaint, duly appointed and acting Police Officers of the Police Department of the City of New York, acting under the color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York, and are being sued herein in both their official capacities and individually.

8. That at all times relevant to this Complaint, defendants, RICE, MITSINIKOS, NESSENTHALER, TENNARIELLO and other officers, whose names are currently unknown were assigned to the 94th Precinct in Kings County, City of New York.

9. That prior to the commencement of the instant action, plaintiff, MICHAEL P. BUCKLEY, in accordance with the laws of the State of New York, served a duly verified Notice of Claim and intention to sue thereon in writing upon the CITY OF NEW YORK on April 15, 2001, that said Notice of Claim was served within ninety (90) days of the respective occurrences herein.

10. That more than thirty (30) days have elapsed since the presentation of the said Notice of Claim and the claims remain unadjusted and that the defendants have fully refused, failed and neglected to make any adjustments for same.

11. That the statutory hearing of the plaintiff required under the Municipal Law of the State of New York prior to the commencement of this suit was held on August 15, 2001 by the CITY OF NEW YORK.

12. That this action is being commenced within one (1) year and ninety (90) days of the date of the occurrence stated herein.

AS AND FOR A FIRST CAUSE OF ACTION PURSUANT TO 42 U.S.C. § 1983

13. That on or about February 27, 2001, at approximately 11:00 a.m. in the area of Driggs Avenue and McGuinness Blvd., Brooklyn, New York, plaintiff was operating a motor vehicle and was involved in a minor automobile accident and thereafter suffered diabetic shock.

14. Defendants were working as police officers in uniform and following the aforementioned event did stop and arrest the plaintiff.

15. That plaintiff was falsely arrested, imprisoned, assaulted, taken to the 94th Precinct and beaten, denied prompt medical care and suffered violations of his rights secured to him by the United States Constitution and the Amendments thereto and New

York State Constitution and the Amendments thereto at the hands of officers RICE, MITSINIKOS, NESSENTHALER and TENNARIELLO.

16. That plaintiff was initially arrested and charged with driving while intoxicated but that the charges were never fully processed in that he was never brought before a Judge for arraignment.

17. That plaintiff never touched, resisted or threatened defendants with any manner of physical force.

18. That the defendants, RICE, MITSINIKOS, NESSENTHALER and TENNARIELLO, violently struck the plaintiff on his head and body causing lacerations, abrasions, multiple trauma, injury to the orbit of his right eye, contusions and abrasions around the orbit of the right eye, contusions of the right hand, right wrist, loss of sensation of strength in the right hand and fracture of the right elbow.

19. That this entire incident occurred at the location aforesaid, at the 94th Precinct and Woodhall Hospital. The plaintiff, at the time of his arrest, detention and assault was carrying medical documentation clearly identifying him as a diabetic and further was wearing a gold medallion further identifying himself as a diabetic.

20. That at the aforementioned time and place, the aforementioned police officer defendants, without just cause or provocation, stopped, handcuffed, searched and assaulted plaintiff while being malicious, reckless, careless and/or negligent.

21. At no time did the plaintiff physically resist or assault the defendants in any way, and the force used against him was unnecessary, unreasonable and excessive.

22. At no time during the events described above, was the plaintiff intoxicated, a threat to the safety of himself or others or disorderly, or had committed any criminal

offense.

23. At all times hereinafter alleged and during the events described herein, the defendant officers were engaged in a joint venture, assisted each other in performing the various actions described, lent their physical presence and support and authority of their office to each other during the said events and were assisted by other officers, whose names are currently unknown, and who also failed to prevent or report the conduct of the individual named defendants.

24. That the acts of the defendant police officers and other unknown officers were under the color of State Law as described herein, constituting the unlawful arrest and imprisonment of the plaintiff; the assault and excessive force against the plaintiff; are all in violation of plaintiff's Civil Rights under the First, Fourth, Eighth and Fourteenth Amendments of the Constitution of the United States and under 42 U.S.C. § 1983.

25. As a result of the foregoing, plaintiff, MICHAEL P. BUCKLEY has suffered serious physical injuries; deprivation of his liberty without probable cause; denial of due process and equal protection of the laws; cruel and unusual punishments; invasion of his privacy; mental distress; pain and suffering; loss of earnings; and damage to his character and reputation.

26. That as a direct and proximate result of the acts of the defendant officers, the plaintiff, MICHAEL P. BUCKLEY, suffered the following injuries and damages:

a) Violation of his Constitutional Rights under the Fourth and Fourteenth Amendments to the United States Constitution and be free from unreasonable search and seizure of his person;

b) Loss of his physical liberty;

- c) Serious and severe pain and suffering and personal injuries, including but not limited to multiple cuts, contusions and abrasions, and fracture of the right elbow;
- d) Has been rendered sick, sore, lame, and disabled;
- e) Sustained a loss of enjoyment of life;
- f) Has sustained lost income and future earning capacity;
- g) Has sustained injuries of a permanent and lasting nature;
- h) Was compelled to undergo additional medical treatment, and may require future medical surgeries;
- i) Suffered pain and discomfort;
- j) Suffered, still suffers, and will continue to suffer severe distress of body and mind;
- k) Has been compelled to and has necessarily expended sums of monies and incurred expenses, in the future, will be necessary to pay for medical care and attention, medicine and other expenses as a result of the foregoing;

27. The action of the defendant officers violated the following clearly established and well settled Federal Constitutional Rights of the plaintiff, MICHAEL P. BUCKLEY:

- a) Freedom from unreasonable seizure of his person;
- b) Freedom from the use of excessive, unreasonable and unjustified force against this person.

28. By reason of the foregoing plaintiff, MICHAEL P. BUCKLEY has been damaged in the sum of TEN MILLION and 00/100 (\$10,000,000.00) DOLLARS plus attorney's fees authorized pursuant to Federal statute.

**AS AND FOR A SECOND CAUSE OF ACTION FOR A VIOLATION OF
CONSTITUTIONAL RIGHTS AGAINST THE CITY OF NEW YORK**

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "28" inclusive, with the same force and effect as herein set forth at length.

30. That prior to February 27, 2001, the CITY OF NEW YORK, developed and maintained policies and customs exhibiting deliberate indifference to the Constitutional Rights of the citizens of the State and City of New York which precipitated the violations of Michael P. Buckley's Constitutional Rights.

31. That it was the policy and/or custom of the City of New York to inadequately and improperly investigate complaints of abuse, intimidation and unreasonable force by police officers and acts of misconduct were instead tolerated by the CITY OF NEW YORK, including but not limited to the prior matters:

- a. Assault of Abner Louima;
- b. Assault of Anthony Biaz;
- c. Multitude of complaints against officers of the 94th Precinct; and
- d. Savage beatings of other presently unnamed victims of abuse.

32. It was the policy and/or custom of the CITY OF NEW YORK to indemnify and defend its officers, including indemnification for awards for punitive damages, without discipline all of which establish the policy and custom of approving such conduct by giving the officers the unmistakable belief that such conduct was tolerated, approved, and accepted.

33. It was the policy and/or custom of the CITY OF NEW YORK to inadequately

supervise, discipline and train its officers, including the defendant officers, thereby failing to adequately discourage further Constitutional violations on the part of its police officers.

34. That the action of the defendant police officers and other unknown police officers resulted from and were taken pursuant to a defacto policy of the defendant, CITY OF NEW YORK to protect acts of misconduct on the part of its police officers, to wit, unlawful arrest and detention; excessive use of force; failing to provide prompt medical attention; abuse of process, harassment and intimidation.

35. Despite the knowledge of illegal, unconstitutional policies and practices, the supervisor and policy making employees of the CITY OF NEW YORK have not as a matter of policy taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional statutory limits on the exercise of their authority and have instead sanctioned the policies and practices described previously through their deliberate indifference to the effect of such policy and practices upon the Constitutional Rights of the plaintiff herein, the residents and visitors to the CITY OF NEW YORK, thereby authorizing and sanctioning such policies and practices.

36. The defendant, CITY OF NEW YORK, having sanctioned the causes of the violation of plaintiff's rights is liable to the plaintiff for his injuries pursuant to 42 U.S.C. § 1983 and the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

37. As a result of the acts stated above, plaintiff, MICHAEL P. BUCKLEY, has been rendered sick, sore, lame, disfigured and disabled; has sustained a loss of enjoyment of life; has sustained injuries of a permanent nature; has been compelled to undergo

additional medical treatment; has been compelled in the past and will be compelled in the future to expend money in an endeavor to alleviate the pain, suffering and disabilities and deformities; has been deprived of his liberty without probable cause; has been denied due process in the protection of laws; has been subject to cruel and unusual punishment; has had his privacy rights invaded; has been caused mental distress and/or damage to his character and reputation and has suffered in the past and will suffer in the future economic loss as a result of the acts alleged herein and makes claims for attorney's fees pursuant to 42 U.S.C. § 1988.

38. By reason of the foregoing plaintiff, MICHAEL P. BUCKLEY has been damaged in a sum not to exceed TEN MILLION and 00/100 (\$10,000,000.00) DOLLARS plus attorney's fees authorized pursuant to Federal statute.

AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST AND ILLEGAL IMPRISONMENT

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "38" inclusive, with the same force and effect as herein set forth at length.

40. That the defendants and other unknown police officers on or about February 27, 2001 were acting in the course of their employment as duly appointed police officers employed by the defendant, CITY OF NEW YORK, when they maliciously and intentionally caused the plaintiff, MICHAEL P. BUCKLEY to be arrested and imprisoned and initially charged with criminal offenses, even though no warrant existed for such an arrest and no probable cause existed for said criminal charges.

41. As a result of said false arrest, plaintiff, MICHAEL P. BUCKLEY was

imprisoned and held in the custody of the police department at the 94th Precinct for several hours beginning at the time of arrest on February 27, 2001 and being denied prompt medical care and attention.

42. As a result of the false arrest and imprisonment which the plaintiff suffered, plaintiff's health was impaired, he suffered great mental distress, his reputation and character were injured.

43. That as a result of the false arrest and illegal imprisonment, plaintiff, MICHAEL P. BUCKLEY, suffered damages as aforesaid.

44. That by reason of the foregoing, plaintiff, MICHAEL P. BUCKLEY, has been damaged in a sum not to exceed FIVE MILLION and 00/100 (\$5,000,000.00) DOLLARS.

AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENCE

45. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "44" inclusive, with the same force and effect as herein set forth at length.

46. The defendant, CITY OF NEW YORK, was negligent, careless and/or reckless in failing to institute and/or file proper regulations and procedures to screen, hire, train, discipline and supervise the defendant police officers, and other unknown police officers in the discharge of their duties, including upon information and belief, the 94th Precinct, to which the defendants were assigned; the failing to implement proper procedures for the use of force; and failing to enforce the law with respect to the use of force; in failing to properly train and control the defendant police officers; in failing to properly authorize use of force, and in other ways being negligent, careless, and reckless in the circumstances.

47. As a result of said negligence, carelessness and/or recklessness, plaintiff, MICHAEL P. BUCKLEY, suffered severed and serious physical injury with accompanying pain, suffering a mental distress, has been rendered sick, sore, lame, disfigured and disabled; has sustained a loss of enjoyment of life; has sustained injuries of a permanent and lasting nature; has been compelled to undergo additional medical treatment; has been compelled in the past and will be compelled in the future to expend money in an endeavor to alleviate pain, suffering disabilities and has suffered in the past and will suffer in the future economic loss as a result of the allegations herein.

48. That as a result of the negligence, carelessness and recklessness of the defendants, plaintiff, MICHAEL P. BUCKLEY suffered damage to his reputation and character.

49. That the said occurrence took place by reason of the carelessness and negligence of the defendants, their agents, servants and/or employees in the hiring and supervision of the defendant police officers involved in the acts hereinabove alleged and other police officers involved; in failing to properly screen, review, discipline and/or instruct said officers in the proper, constitutional use of force; in failing to properly control themselves; negligently, carelessly and recklessly striking and beating the plaintiff; in failing to teach and train the officers in the proper recognition of a diabetic condition; failing to render and/or provide prompt medical attention; keeping plaintiff from receiving prompt medical attention and in otherwise being reckless, careless and negligent under the circumstances.

50. That the aforementioned assault was caused solely by the negligent, careless and reckless acts and/or omissions of the defendants, their agents, servants

and/or employees without instigation or provocation by the plaintiff.

51. That as a result of the negligence of the defendants, plaintiff, MICHAEL P. BUCKLEY, suffered serious damages as aforesaid.

52. That as a result of the foregoing, plaintiff, MICHAEL P. BUCKLEY has been damaged in a sum not to exceed FIVE MILLION and 00/100 (\$5,000,000.00) DOLLARS.

WHEREFORE, plaintiff, MICHAEL P. BUCKLEY, demands judgment against the defendants as follows:

a) IN THE FIRST CAUSE OF ACTION PURSUANT TO 42 U.S.C. §1983 IN A SUM NOT TO EXCEED TEN MILLION and 00/100 DOLLARS (\$10,000,000.00);

b) IN THE SECOND CAUSE OF ACTION FOR A VIOLATION OF CONSTITUTIONAL RIGHTS AGAINST THE CITY OF NEW YORK IN A SUM NOT TO EXCEED TEN MILLION and 00/100 DOLLARS (\$10,000,000.00);

c) IN THE THIRD CAUSE OF ACTION FOR FALSE ARREST AND ILLEGAL IMPRISONMENT IN A SUM NOT TO EXCEED FIVE MILLION and 00/100 DOLLARS (\$5,000,000.00);

d) IN THE FOURTH CAUSE OF ACTION FOR NEGLIGENCE IN A SUM NOT TO EXCEED FIVE MILLION and 00/100 DOLLARS (\$5,000,000.00);

e) Punitive damages against the individual defendants in the sum of ONE MILLION and 00/100 DOLLARS (\$1,000,000.00); and

f) Costs, disbursements and attorneys fees pursuant to 42 U.S.C. § 1988.